

25LBCV01828 25LBCV01828

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-11

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Defendant moves for summary

adjudication on Plaintiff's fourth and fifth causes of action. Plaintiff failed to timely file opposition papers.

Recently, in *Mandell-Brown v.*

Novo Nordisk Inc. (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion. The *Mandell-Brown* Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

The Court notes that the Court has heard equivalent unopposed motions for summary judgment or adjudication multiple times (recently on June 21, 2026 in 24LBCV02791 and June 30, 2026 in 25LBCV01836) in cases where plaintiffs have been represented by the same counsel.

The Court reminds counsel of its obligations under Rule of Professional Conduct 3.1(a)(2):

"A lawyer shall not present a claim or defense in litigation that is not warranted under existing law, unless it can be supported by a good faith argument for an extension, modification, or reversal of the existing law."

If counsel does not intend to argue the validity of its clients' causes of action in good faith, the proper course of action is to dismiss those claims, not to waste the Court and the opposing party's resources by failing to oppose dispositive motions.

The motion is granted. Defendant to give notice.